Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1426
Claimant:	Joshua Brooks
Adjuster:	Alison Sweeney

1 Jan 2024 - Claim opened for side impact collision at a signalized intersection. Insured vehicle was struck on the driver side by a third-party vehicle that entered on a late yellow. Police report requested. Claimant reports neck pain and stiffness and has been seen at an urgent care facility. Claimant is represented by counsel; all contact to go through the attorney's office.

7 Jan 2024 - Received letter of representation from claimant's attorney's office. Requested medical authorization and prior treatment records for the neck and upper back. Recorded liability position as disupted pending review of the signal timing and witness statements. Scene photos from the insured's dashcam reviewed and added to file.

12 Jan 2024 - Obtained the police report. Officer noted both drivers gave conflicting accounts of signal phase. Independent witness contact information listed; recorded statement requested. Vehicle damage appraisal scheduled at repair shop. Diagnosis from treating physician indicates whiplash-type cervical strain with muscle spasm. Follow-up imaging ordered by provider.

15 Jan 2024 - Witness interviewed by phone and confirmed the third-party vehicle entered the intersection after the signal changed to red. Liability assessment revised to favor insured at a majority share. Demand package expected from claimant's counsel. Reserve reviewed and adjusted to reflect current medical treatment and property damage estimates.

20 Jan 2024 - Counsel's demand pakcage received, including itemized medical bills and treatment notes. Medical records under review by claims nurse for consistency with the reported mechanism of injury. Requested IME scheduling through counsel. File referred to supervisor for settlement authority review. Next diary set for follow-up with defense counsel on medical evaluation results.

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Recorded Statement

Claim number:	C-1426
Statement of:	Joshua Brooks
Taken by:	Alison Sweeney
Date:	29 Dec 2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you were involved in at an intersection in Katy, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Can you describe where you were traveling and what the traffic signal looked like when you approached the intersection?

A: I was heading east on the main road and had a green light. I slowed a little because traffic was backed up on the cross street, but I didn't stop.

Q: What happened next?

A: A pickup coming from the north side ran through the intersection. I saw it at the last second and tried to brake, but it hit the driver's side of my car.

Q: Were you able to stop before impact, or did you have time to react?

A: Not really. I had maybe a second. The impact pushed my car sideways into the curb area.

Q: Did you hit your head or lose consciousness at any point?

A: No, I didn't black out. But my head snapped forward and then back, and my neck has been stiff ever since.

Q: Have you sought any medical attention since the collision?

A: Yes, I went to an urgent care clinic that same afternoon. They diagnosed whiplash and gave me a neck brace and some medication. I've also started physical therapy twice a week.

Q: Are you currently experiencing any pain or limitations in daily activities?

A: Yes. Turning my head to check mirrors is painful, and I've had headaches most days. I've had to take time off work to attend appointments.

Q: Is there anything you would like to add to your statement?

A: Only that I was following the signal and did everything I could to avoid the crash.

Q: Thank you. This concludes the recorded statement.

A: Thank you.